

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Megan Ault	Team: Team # 8	CCRB Case #: 200809666	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/10/2007 7:00 PM	Location of Incident: the 47th Precinct	18 Mo. SOL 1/10/2009	Precinct: 47
Date/Time CV Reported Tue, 07/08/2008 9:24 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/08/2008 9:24 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Query	06987	937315	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT John White	05340	895147	PBBX TF
2. POF Maritza Ayala	24020	927886	PBBX TF

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Query	Abuse: PO Brian Query stopped § 87(2)(b)	A . Exonerated
B . POM Brian Query	Abuse: PO Brian Query frisked § 87(2)(b)	B . Exonerated

Synopsis

§ 87(2)(b) phoned the CCRB on July 8, 2008, to file this complaint.

§ 87(2)(b) stated that on an unknown day in late August 2007, he was walking outside of 4111 Laconia Avenue in the Bronx with his two children. PO Brian Query stopped § 87(2)(b) (**Allegation A**), frisked him (**Allegation B**), recovered two knives from his person, and arrested him for § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Summary of Complaint

§ 87(2)(b) appeared at the CCRB on July 15, 2008 (encl. 4A). His in-person statement was consistent with the information he provided the CCRB when he filed the complaint. § 87(2)(b) is a § 87(2)(b)-old black male with § 87(2)(b).

§ 87(2)(b) stated that around 7:00 PM on an unknown date in August of 2007, he was walking outside the 47th Precinct stationhouse, which is located at 4111 Laconia Avenue in the Bronx. Laconia Avenue runs north-south, and § 87(2)(b) was on the sidewalk on the west side of the street. He described Laconia as having two lanes of traffic and a row of diagonally parked cars on each side of the yellow line. § 87(2)(b)'s daughter and son, aged § 87(2)(b) and § 87(2)(b) years, respectively, were walking in front of him. The three had just returned from a fishing trip and had gone to buy flour from the corner store. § 87(2)(b) was talking with a friend on his mobile phone. There was a marked police van double parked behind the diagonally parked cars on the other side of the street. An officer, identified by the investigation as PO Brian Query, said, "Pssst!" § 87(2)(b) heard this noise, but did not think it was directed at him. PO Query started crossing the street and said, "Excuse me, can I talk to you for a minute?" PO Query was a 25-year-old male who appeared Dominican, and wore a uniform. He was 5'2"-5'3" tall, had a heavy build, black curly hair, no glasses and no facial hair.

PO Query said, "Did you hear me calling you? Why'd you keep walking if you heard me calling you? You looked right at me and kept moving." § 87(2)(b) responded that he had to stop his children from crossing the street and asked what the problem was. His friend, who was still on the phone, asked § 87(2)(b) if the police were harassing him. § 87(2)(b) responded that he was not being harassed. PO Query said, "Oh you think I'm harassing you? Hang up the phone." § 87(2)(b) complied.

§ 87(2)(b) was wearing a loose fitting button-down shirt and jean shorts. He had his cell phone in a black leather case attached to his pants on his right hip. The shirt was completely unbuttoned, and hanging over the cell phone case. PO Query reached toward § 87(2)(b)'s abdomen with the intention of lifting the right side of his shirt. § 87(2)(b) saw PO Query's hand coming toward him and pushed it aside with his arm. § 87(2)(b) said, "What's the problem?" PO Query said, "I just saw that you had something there

and I was wondering what it was,” § 87(2)(b) pulled the shirt away from his body, exposing his cell phone case, and telling the officer what it was. PO Query said, “Is that what that is?” PO Query reached toward him again, and § 87(2)(b) moved the officer’s hand aside again. PO Query’s partner, PO2, approached § 87(2)(b). PO2 had been inside the police van across the street. PO2 was a Hispanic female with brown hair and a tan complexion. She appeared 25-27 years-old, was 5’5” tall, had an average build, and wore a uniform. PO2 began speaking with § 87(2)(b)’s children in order to keep them occupied.

PO Query said, “The cell phone case looks like a gun and you know what’s been going on around here lately.” § 87(2)(b) said that he did not know what had been going on since he had just returned from fishing with his children. PO Query asked § 87(2)(b) for identification, but he did not have any. PO Query told § 87(2)(b) that according to the law he was supposed to have identification with him. PO Query stated that he had thought § 87(2)(b)’s cell phone case was a gun, and that he would need to verify § 87(2)(b)’s identity (**Allegation A**).

PO Query patted § 87(2)(b) around his waist and butt (**Allegation B**), and asked § 87(2)(b) if he was sure he didn’t have any identification or paperwork. When PO Query patted § 87(2)(b)’s right front pocket, he felt something and asked § 87(2)(b) what it was. § 87(2)(b) reached into his pocket and removed a red pocket-knife which he used for fishing. The blade itself was less than three inches long and opened on a hinge. § 87(2)(b) stated that there are no buttons or releases on the knife. PO Query inspected the knife and announced that it was a gravity knife. § 87(2)(b) thought that he said a “garrity knife.” § 87(2)(b) removed a second identical knife from his front left pocket, and started inspecting it, looking for something that identified it as a “garrity knife.” PO Query inspected the second knife and stated that it was also a gravity knife. § 87(2)(b) explained to the CCRB that the knives belonged to his children and that they used them while fishing.

PO Query asked § 87(2)(b) if there was someone who could pick up his children as he would be charged with weapons possession. § 87(2)(b) said that there was no one he could call, and in response PO Query stated that he would be going to central booking, and if there was no one who could pick up his children ACS would have to pick them up. § 87(2)(b) argued that the knives he had were not weapons, and he requested to speak with a sergeant.

PO Query called Sgt. White to the incident location, and explained the situation to him. § 87(2)(b) identified Sgt. White by name during his interview and stated that the sergeant wrote down his name and shield number for him. Sgt. White apologized to § 87(2)(b) and said that PO Query would write him a ticket. Sgt. White left, and PO Query stated that in order to issue the ticket § 87(2)(b) would have to go into the stationhouse. § 87(2)(b) protested that he did not want his children to go inside the precinct, but eventually agreed. PO2 escorted § 87(2)(b)’s children inside first, after which PO Query placed § 87(2)(b) in handcuffs. § 87(2)(b)’s children were placed in a room, and § 87(2)(b) was placed inside a cell. PO Query searched him, and took possession of his belongings. While searching him inside the stationhouse, PO Query patted § 87(2)(b)’s butt again, which he felt was unnecessary. PO Query photographed § 87(2)(b) and then released him with a summons for § 87(2)(b).

§ 87(2)(b) stated that Sgt. White was, “an officer and a gentleman,” and that both the sergeant and PO2 were angry at PO Query. § 87(2)(b) stated that besides gently pushing PO Query’s hand aside, he was not physically combative, and did not raise his voice at the officer. § 87(2)(b) stated that had the officer honestly mistaken his cell phone case for a gun, he would not have approached him as PO Query did, and would not have said, “Pssst” as though he were a homosexual.

Results of Investigation

Officer Statement: PO Brian Query

PO Brian Query appeared at the CCRB on March 13, 2009. He is a § 87(2)(b). On July 10, 2007, PO Query worked under the Patrol Borough Bronx Task Force, Command 138, and was assigned to

Task Force Mobile 1 in the confines of the 47th Precinct. He worked in a marked van, wore a uniform, and was on duty from 6:00 PM until 2:00 AM the following morning. He did not have his memo book with him at the time of the interview, and did not remember who his partner was.

Memo Book (encl. 6A)

PO Query's memo book notes that on July 10, 2007, PO Query was assigned to work as Sgt. White's operator in the 47th Precinct. PO Ayala also worked with them in van #5464. He had the following entries related to this incident:

"2100: 1 under from the front of 47 PCT. Possession of 2 gravity knives. § 87(2)(b) § 87(2)(b) was disorderly. 2300: DAT #§ 87(2)(b)

Arrest Report (encl. 5A)

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

CCRB Statement (encl. 7A)

Around 7:00 PM on July 10, 2007, PO Query was sitting in the driver's seat of a marked police van which was in a parking space just outside the 47th Precinct stationhouse, which is located at 4111 Laconia Avenue in the Bronx, and directly across from the Edenwald Public Housing Development. The sun had not yet set, and the area was well lit. PO Query noticed § 87(2)(b) walking along the sidewalk on the same side of the street as the van. § 87(2)(b) was wearing dark clothing and had what appeared to be a large red knife clipped to both his right and left pants' pockets. The handle was around four inches in length and the knives were clipped so that they were hanging outside § 87(2)(b)'s pockets. PO Query did not remember anything else clipped onto § 87(2)(b)'s pants, and remembered nothing clipped onto his waistband. PO Query believed that his partner was outside the van at that time, but he could not clearly remember. § 87(2)(b) was with his two small children, who were walking ahead of him and had reached the street corner.

PO Query exited the van and walked toward § 87(2)(b) who was speaking to someone on his cell phone. § 87(2)(b) became hostile toward PO Query before the officer gave any indication that he intended to stop him. PO Query said, "Fucking cops" into the phone, and provided the person on the phone with PO Query's name and shield number before PO Query spoke to him. PO Query told § 87(2)(b) that he was stopping him because of the knives he had, and reached over and unclipped them from § 87(2)(b)'s pockets. PO Query removed the knives from § 87(2)(b) for his safety. PO Query tested the knives by flicking them toward the floor, thus verifying that they were gravity knives. The blades were slightly over four inches long. § 87(2)(b) did not understand what a gravity knife was, and PO Query explained that they were knives which opened with centrifugal force, and that they were illegal. PO Query patted § 87(2)(b)'s front and rear pants' pockets to ensure that he had no other weapons. He did this quickly and told § 87(2)(b) not to put his hands in the air because he did not want his children to be alarmed. § 87(2)(b) stated that he had the knives because the area is dangerous and that he liked their color.

PO Query called his supervisor. He was not sure who responded. His supervisor verified § 87(2)(b)'s arrest, and they escorted him and his children inside the stationhouse. PO Query and his supervisor both went out of their way to conceal § 87(2)(b)'s arrest from his children, because they did not want them to be scared of or think badly about the police. They did not place § 87(2)(b) in a holding cell, but instead had him and his children wait in a complaint room. They gave pizza and coloring books to § 87(2)(b)'s children, and showed them around the stationhouse while § 87(2)(b)'s arrest was completed. PO Query photographed and fingerprinted § 87(2)(b) and removed his belt and shoelaces from his person. He also frisked him again, which involved patting his pants' pockets, and searched him. § 87(2)(b) was not placed in handcuffs. PO Query stated that for the sake of § 87(2)(b)'s children he broke procedure and issued him a desk appearance ticket instead of putting him through the system. PO Query stated that he was technically not supposed to do this for a charge as serious as possession of a deadly weapon, especially for two counts. PO Query released § 87(2)(b) who thanked the officers for how they handled the situation.

PO Query stated that he did not discuss ACS or mention the possibility of contacting ACS to § 87(2)(b) nor did he hear any other officer do so. He did not call out to § 87(2)(b) prior to approaching him, nor did he remember § 87(2)(b) wearing a cell phone case on his hip, or discussing that cell phone case with § 87(2)(b). § 87(2)(b) never mentioned that he had just gone fishing, or that the knives were for fishing. § 87(2)(b) did mention that he bought the knives out of state.

PBA Representative Kenneth Stand noted his objection to interview taking place, as the incident occurred 20 months prior to the interview.

Officers Not Interviewed

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(g)

Police Documents

BADS Report (encl. 9A)

Arrest # § 87(2)(b)

§ 87(2)(a) 160.50

§ 87(2)(b)

§

§ 87(2)(b)

Status of Court Case (encl. 10A)

§ 87(2)(b)

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Officer Histories (encl. 2A)

The CCRB has never substantiated an allegation of misconduct against PO Brian Query.

Notice of Claim Inquiry (encl. 13A)

As of March 19, 2009, no notice of claim has been filed regarding this case.

Conclusions and Recommendations

Allegations not Pleaded

§ 87(2)(b) stated that PO Query informed him that he would need to call someone to pick up his children because he would be going to central booking. § 87(2)(b) alleged that after telling the officer that there was no one he could call, PO Query informed him that if this was the case ACS would have to pick up his children. § 87(2)(g) § 87(2)(b)

§ 87(2)(b) was already under arrest at this time, PO Query was discussing with him the police department's procedure for the care of children, § 87(2)(g)

§ 87(2)(b)

Officer Identification

§ 87(2)(b) identified PO Query by name and provided an accurate description of him. He alleged that PO Query stopped, frisked, and arrested him at the date and time of the incident. PO Query acknowledged

interacting with § 87(2)(b) on the incident date, and according to police documents was his arresting officer. § 87(2)(g)

Undisputed Facts

It is undisputed that at the time PO Query questioned and stopped him, § 87(2)(b) was in possession of two knives. It is undisputed that PO Query frisked § 87(2)(b) prior to placing him under arrest. It is undisputed that PO Query arrested § 87(2)(b) and later issued him a desk appearance ticket for § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation A: PO Brian Query stopped § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g). According to Kamins 2.04, a police officer may stop a person “when he reasonably suspects that such a person is committing, has committed, or is about to commit either a) a felony or b) a misdemeanor defined in the penal law.” § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation B: PO Brian Query frisked § 87(2)(b)

According to Kamins 2.05, “When...a police officer...reasonably suspects that he is in danger of physical injury, he may search such person for a deadly weapon...” § 87(2)(b), § 87(2)(g)

[REDACTED]

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: